# CHAPTER 16 Inter-State Relations

**T**he successful functioning of the Indian federal system depends not only on the harmonious relations and close cooperation between the Centre and the states but also between the states *inter se*. Hence, the Constitution makes the following provisions with regard to inter-state comity:

1. Adjudication of inter-state water disputes.
2. Coordination through inter-state councils.
3. Mutual recognition of public acts, records and judicial proceedings.
4. Freedom of inter-state trade, commerce and intercourse.

In addition, the zonal councils have been established by the Parliament to promote inter-state cooperation and coordination.[1]

**INTER-STATE WATER DISPUTES**

Article 262 of the Constitution provides for the adjudication of inter-state water disputes. It makes two provisions:

**(i)** Parliament may by law provide for the adjudication of any dispute or complaint with respect to the use, distribution and control of waters of any inter-state river and river valley.

**(ii)** Parliament may also provide that neither the Supreme Court nor any other court is to exercise jurisdiction in respect of any such dispute or complaint.

Under this provision, the Parliament has enacted two laws [the River Boards Act (1956) and the Inter-State River Water Disputes Act (1956)]. The River Boards Act provides for the establishment of river boards for the regulation and development of inter-state river and river valleys. A river board is established by the Central government on the request of the state governments concerned to advise them.

The Inter-State River Water Disputes Act empowers the Central government to set up an ad hoc tribunal for the adjudication of a dispute between two or more states in relation to the waters of an inter-state river or river valley. The decision of the tribunal would be final and binding on the parties to the dispute. Neither the Supreme Court nor any other court is to have jurisdiction in respect of any water dispute which may be referred to such a tribunal under this Act.

So far, the Central government has set up several inter-state water dispute tribunals. The name of the tribunals, the years in which they were constituted and the states involved in the dispute are mentioned in Table 16.1.

**INTER-STATE COUNCILS**

Article 263 contemplates the establishment of an Inter-State Council to effect coordination between the states and between Centre and states. Thus, the President can establish such a council if at any time it appears to him/her that the public interest would be served by its establishment. He/she can define the nature of duties to be performed by such a council and its organisation and procedure.